

		papers or fail to serve the motion papers on all parties in the Later Case. Defendants shall give notice of this ruling.
5	Ayasrah vs. Fateh 30-2023-01347912	<u>Motion for Entry of Judgment</u> Plaintiff Rakan Ayasrah's Motion to Enforce Settlement Agreement and Enter Judgment is GRANTED. The court ORDERS that Judgment shall be ENTERED in favor of Plaintiff Rakan Ayasrah and against Defendants Marble Boutique, LLC and Sief Fateh in the amount of \$35,000 plus \$5,000 in reasonable attorney's fees. Plaintiff Rakan Ayasrah is ORDERED to prepare a proposed judgment consistent with this ruling and serve it upon Defendants Marble Boutique, LLC and Sief Fateh and submit it to the court pursuant to Rules of Court rule 3.1590(h). The Court FINDS good cause to allow Plaintiff Rakan Ayasrah 30 days from the date of this ruling to prepare, serve, and submit the proposed judgment. <u>Pending Motion</u> Plaintiff Rakan Ayasrah moves for an order to enter judgment against Defendants Marble Boutique, LLC and Sief Fateh pursuant to the Settlement Agreement dated November 12, 2024. <u>Standard for Entry of Judgment</u> Civil Procedure Code section 664.6 provides: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6, subd. (a).) As the Court of Appeal has explained: The purpose of section 664.6 is "to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit." "If the court

		determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement.” (<i>Greisman v. FCA US, LLC</i> (2024) 103 Cal.App.5th 1310, 1321, quoting <i>Weddington Productions, Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 809; see also <i>Eagle Fire and Water Restoration, Inc. v. City of Dinuba</i> (2024) 102 Cal.App.5th 448, 457 [“section 664.6 provides an expedited procedure for enforcing the parties’ settlement agreement”]; <i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182 [“Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement.”].) Pursuant to Section 664.6, “even though a settlement may call for a case to be dismissed, or the plaintiff may dismiss the suit of its own accord, the court may nevertheless retain jurisdiction to enforce the terms of the settlement, until such time as all of its terms have been performed by the parties, <i>if the parties have requested this specific retention of jurisdiction.</i>” (<i>Wackeen v. Malis</i> (2002) 97 Cal.App.4th 429, 439, italics original.) However, “[a] trial court cannot enforce a settlement under section 664.6 unless the trial court finds the parties expressly consented . . . to the material terms of the settlement.” (<i>Bowers v. Raymond J. Lucia Companies, Inc.</i> (2012) 206 Cal.App.4th 724, 732.) Thus, before granting a motion to enforce a judgment, the court must determine “whether the parties entered into a binding settlement agreement of all or part of a case.” (<i>In re Marriage of Assemi</i> (1994) 7 Cal.4th 896, 911.) <u>Existence and Validity of Settlement Agreement</u> Here, Plaintiff has presented evidence that, on November 12, 2024, Plaintiff and Defendants entered into a written settlement agreement, which both parties signed. (See Decl. of Harley M. Phleger in Supp. of Pltf.’s Mot. to Enforce Settlement Agreement and Enter Judgment (Phleger Decl.), ¶ 3, Exh. A.)
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		In the settlement agreement, the parties agreed that Defendants would make three \$20,000.00 payments on February 15, May 15, and August 15 of 2025. (See <i>id.</i>, Exh. A.) Plaintiff also submitted evidence that the parties simultaneously executed a Joint Stipulation for Future Entry of Judgment, and the parties agreed a judgment would be entered if Defendants failed to cure any breaches of the settlement agreement, or if they otherwise failed to pay the settlement. (See <i>id.</i>, ¶ 3, Exh. B.) Further, Plaintiff presented evidence that while Defendants paid \$25,000 of the \$60,000 required under the settlement agreement, they have not paid the remaining balance. (See <i>id.</i>, ¶¶ 4, 6-13, 15, Exh.s C, D, F-J.) The evidence shows that Defendants offered to make one final payment of \$10,000 in satisfaction of the \$35,000 they still owed and Plaintiff rejected this offer. (See <i>id.</i>, ¶ 14.) This evidence is sufficient to show the existence of a valid settlement agreement, that Defendants have breached that settlement agreement, and that Plaintiff is entitled to entry of judgment in the sum of \$35,000. In addition, Plaintiff has shown that he is entitled to reasonable attorney's fees in the amount of \$5,000. (See <i>id.</i>, ¶¶ 16-17, Exh B.) Defendants have failed to file an opposition or respond to the motion and thus, have waived any arguments regarding the motion. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Therefore, the court will grant the motion. Plaintiff shall give notice of this ruling.
6	Cohen vs. Grande	<u>Motion for Leave to File Cross-Complaint</u>